# INTELLECTUAL PROPERTY RIGHTS AND PATENTS

**PATENTABILITY DECISION TREE → DISCOVERY INVENTION PRODUCT PROCESS → TERM AND TERRITORIALITY MAP → INDIAN PATENT PROCEDURE RAIL → INSTITUTION AND FORUM ROUTER → PUBLIC-INTEREST SAFEGUARD LADDER**

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artifacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

00

STAGE 00

## PATENTABILITY DECISION TREE

PATENTABILITY DECISION TREE · CLAIMED SUBJECT MATTER · PRODUCT OR PROCESS? · ABSENT FROM PRIOR ART · INVENTIVE STEP · NON-OBVIOUS TECHNICAL ADVANCE · ECONOMIC SIGNIFICANCE · INDUSTRIAL APPLICATION

**CLAIMED SUBJECT MATTER → product or process?**

NOVELTY → absent from prior art → INVENTIVE STEP → non-obvious technical advance / economic significance → INDUSTRIAL APPLICATION → capable of being made or used in industry

### CONCEPT / ARCHITECTURE

- CLAIMED SUBJECT MATTER → product or process?
- NOVELTY → absent from prior art

### MECHANISM / APPLICATION

- INVENTIVE STEP → non-obvious technical advance / economic significance
- INDUSTRIAL APPLICATION → capable of being made or used in industry

### READINESS / STATUS LIMIT

- SECTIONS 3 / 4 → excluded subject matter still fails
- CLAIMED SUBJECT MATTER → product or process?

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTIONS 3 / 4 → excluded subject matter still fails.**

01

STAGE 01

## DISCOVERY INVENTION PRODUCT PROCESS MATRIX

DISCOVERY INVENTION PRODUCT PROCESS MATRIX · FINDING; NOT AUTOMATICALLY AN INVENTION · QUALIFYING NEW PRODUCT OR PROCESS · PRODUCT PATENT · CLAIMED THING · PROCESS PATENT · CLAIMED METHOD · INDIA PHARMA

| SYSTEM / DEVICE / INSTITUTION | DECISIVE TECHNICAL DISTINCTION | STATUS / UNIT / EVIDENCE LIMIT |
|---|---|---|
| DISCOVERY → finding; not automatically an invention | PRODUCT PATENT → claimed thing | INDIA PHARMA / FOOD / CHEMICALS → process-only 1970-2004; product from 01 JAN 2005 |
| INVENTION → qualifying new product or process | PROCESS PATENT → claimed method | DISCOVERY → finding; not automatically an invention |

### SYSTEM / DEVICE / INSTITUTION

- DISCOVERY → finding; not automatically an invention
- INVENTION → qualifying new product or process

### DECISIVE TECHNICAL DISTINCTION

- PRODUCT PATENT → claimed thing
- PROCESS PATENT → claimed method

### STATUS / UNIT / EVIDENCE LIMIT

- INDIA PHARMA / FOOD / CHEMICALS → process-only 1970-2004; product from 01 JAN 2005
- DISCOVERY → finding; not automatically an invention

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INDIA PHARMA / FOOD / CHEMICALS → process-only 1970-2004; product from 01 JAN 2005.**

02

STAGE 02

## TERM AND TERRITORIALITY MAP

TERM AND TERRITORIALITY MAP · FILING DATE · 20-YEAR TERM CLOCK · INDIAN GRANT · ENFORCEABLE TERRITORIAL INDIAN RIGHT · PARIS ROUTE · SELECTED FOREIGN FILINGS · PCT ROUTE

**FILING DATE → 20-YEAR TERM CLOCK**

INDIAN GRANT → enforceable territorial Indian right → DIRECT / PARIS ROUTE → selected foreign filings → PCT ROUTE → common international application procedure

### CONCEPT / ARCHITECTURE

- FILING DATE → 20-YEAR TERM CLOCK
- INDIAN GRANT → enforceable territorial Indian right

### MECHANISM / APPLICATION

- DIRECT / PARIS ROUTE → selected foreign filings
- PCT ROUTE → common international application procedure

### READINESS / STATUS LIMIT

- NATIONAL / REGIONAL OFFICE → final grant decision
- FILING DATE → 20-YEAR TERM CLOCK

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NATIONAL / REGIONAL OFFICE → final grant decision.**

03

STAGE 03

## INDIAN PATENT PROCEDURE RAIL

INDIAN PATENT PROCEDURE RAIL · APPLICATION FILED · EXAMINATION ON REQUEST · COMPLIANCE TEST · GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG

APPLICATION FILED → EXAMINATION ON REQUEST → OPPOSITION / COMPLIANCE TEST → GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG

### STARTING CONDITION / INPUT

- APPLICATION FILED
- EXAMINATION ON REQUEST

### SCIENTIFIC OR ENGINEERING MECHANISM

- OPPOSITION / COMPLIANCE TEST
- GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG

### OUTPUT / FAILURE BOUNDARY

- APPLICATION FILED
- EXAMINATION ON REQUEST

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG.**

04

STAGE 04

## INSTITUTION AND FORUM ROUTER

INSTITUTION AND FORUM ROUTER · POLICY AND IMPLEMENTATION SUPPORT · ADMINISTRATIVE APEX · INDIAN PATENT OFFICE · PATENT ADMINISTRATION · PCT AND TREATY COOPERATION; WTO · EXISTED AT 2019 PYQ DATE; ABOLISHED IN 2021

**DPIIT / CIPAM → policy and implementation support**

CGPDTM → administrative apex → INDIAN PATENT OFFICE → patent administration → WIPO → PCT and treaty cooperation; WTO → TRIPS

### CONCEPT / ARCHITECTURE

- DPIIT / CIPAM → policy and implementation support
- CGPDTM → administrative apex

### MECHANISM / APPLICATION

- INDIAN PATENT OFFICE → patent administration
- WIPO → PCT and treaty cooperation; WTO → TRIPS

### READINESS / STATUS LIMIT

- IPAB → existed at 2019 PYQ date; abolished in 2021
- DPIIT / CIPAM → policy and implementation support

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: IPAB → existed at 2019 PYQ date; abolished in 2021.**

05

STAGE 05

## PUBLIC-INTEREST SAFEGUARD LADDER

PUBLIC-INTEREST SAFEGUARD LADDER · SECTION 3(D) · PATENTABILITY QUALITY FILTER · SECTION 25 · POST-GRANT OPPOSITION · SECTION 84 · THREE-YEAR TIMING PLUS THREE GROUNDS · SECTION 92

**SECTION 3(d) → patentability quality filter**

SECTION 25 → pre-grant / post-grant opposition → SECTION 84 → three-year timing plus three grounds → SECTION 92 → notified emergency / urgency / public non-commercial use

### STARTING CONDITION / INPUT

- SECTION 3(d) → patentability quality filter
- SECTION 25 → pre-grant / post-grant opposition

### SCIENTIFIC OR ENGINEERING MECHANISM

- SECTION 84 → three-year timing plus three grounds
- SECTION 92 → notified emergency / urgency / public non-commercial use

### OUTPUT / FAILURE BOUNDARY

- SECTION 107A → regulatory-information use; not unlimited research
- SECTION 3(d) → patentability quality filter

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTION 107A → regulatory-information use; not unlimited research.**

06

STAGE 06

## SECTION 3(D) TWIN-LIMB GATE

SECTION 3(D) TWIN-LIMB GATE · KNOWN SUBSTANCE · BRANCH A · NEW PROPERTY · NEW USE · NOT AN INVENTION · BRANCH B · NEW FORM

**KNOWN SUBSTANCE**

BRANCH A → new property / new use → not an invention → BRANCH B → new form → test significant efficacy difference → THERAPEUTIC CONTEXT → owner records therapeutic-efficacy reading

### CONCEPT / ARCHITECTURE

- KNOWN SUBSTANCE
- BRANCH A → new property / new use → not an invention

### MECHANISM / APPLICATION

- BRANCH B → new form → test significant efficacy difference
- THERAPEUTIC CONTEXT → owner records therapeutic-efficacy reading

### READINESS / STATUS LIMIT

- TRAP → never transfer the new-form exception to a new-use claim
- KNOWN SUBSTANCE

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → never transfer the new-form exception to a new-use claim.**

07

STAGE 07

## PCT WIPO TRIPS WTO SPLIT

PCT WIPO TRIPS WTO SPLIT · INTERNATIONAL PATENT-APPLICATION PROCEDURE · ADMINISTERS PCT AND OTHER IP TREATIES · MINIMUM STANDARDS PLUS FLEXIBILITIES · MONITORING AND MEMBER-TO-MEMBER DISPUTE SETTLEMENT · AUTOMATIC UNIVERSAL PATENT GRANT

| SYSTEM / DEVICE / INSTITUTION | DECISIVE TECHNICAL DISTINCTION | STATUS / UNIT / EVIDENCE LIMIT |
|---|---|---|
| PCT → international patent-application procedure | TRIPS → minimum standards plus flexibilities | NONE → automatic universal patent grant |
| WIPO → administers PCT and other IP treaties | WTO → monitoring and member-to-member dispute settlement | PCT → international patent-application procedure |

### SYSTEM / DEVICE / INSTITUTION

- PCT → international patent-application procedure
- WIPO → administers PCT and other IP treaties

### DECISIVE TECHNICAL DISTINCTION

- TRIPS → minimum standards plus flexibilities
- WTO → monitoring and member-to-member dispute settlement

### STATUS / UNIT / EVIDENCE LIMIT

- NONE → automatic universal patent grant
- PCT → international patent-application procedure

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: WIPO → administers PCT and other IP treaties.**

08

STAGE 08

## TRADITIONAL KNOWLEDGE PROTECTION CHAIN

TRADITIONAL KNOWLEDGE PROTECTION CHAIN · CODIFIED MEDICINAL KNOWLEDGE · TKDL DOCUMENTATION · SEARCHABLE PRIOR ART FOR PATENT OFFICES · RESIST WRONGFUL NOVELTY CLAIMS · DEFENSIVE DISCLOSURE IS NOT A PATENT OR AUTOMATIC BENEFIT

### STARTING CONDITION / INPUT

- CODIFIED MEDICINAL KNOWLEDGE
- TKDL DOCUMENTATION

### SCIENTIFIC OR ENGINEERING MECHANISM

- SEARCHABLE PRIOR ART FOR PATENT OFFICES
- RESIST WRONGFUL NOVELTY CLAIMS / BIOPIRACY

### OUTPUT / FAILURE BOUNDARY

- LIMIT → defensive disclosure is not a patent or automatic benefit sharing
- CODIFIED MEDICINAL KNOWLEDGE

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → defensive disclosure is not a patent or automatic benefit sharing.**

09

STAGE 09

## IP BOUNDARY WHEEL

IP BOUNDARY WHEEL · TECHNICAL FUNCTION · ORIGINAL EXPRESSION, NOT IDEA · COMMERCIAL-SOURCE IDENTIFIER · COLLECTIVE PLACE-LINKED GOODS · VISUAL APPEARANCE, NOT TECHNICAL FUNCTION · MUST REMEMBER · PATENT ANALYSIS SEPARATES PATENTABLE SUBJECT MATTER, NOVELTY, INVENTIVE

PATENT → invention / technical function → COPYRIGHT → original expression, not idea → TRADEMARK → commercial-source identifier → GI → collective place-linked goods → DESIGN → visual appearance, not technical function

### SYSTEM / DEVICE / INSTITUTION

- PATENT → invention / technical function
- COPYRIGHT → original expression, not idea

### DECISIVE TECHNICAL DISTINCTION

- TRADEMARK → commercial-source identifier
- GI → collective place-linked goods

### STATUS / UNIT / EVIDENCE LIMIT

- DESIGN → visual appearance, not technical function
- MUST REMEMBER: Patent analysis separates patentable subject matter, novelty, inventive...

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Patent analysis separates patentable subject matter, novelty, inventive.**

10

STAGE 10

## LIFE MATERIAL AND SOFTWARE FILTER

LIFE MATERIAL AND SOFTWARE FILTER · SECTION 3(J) EXCLUSION · PLANT VARIETY · PPV&FR SUI-GENERIS ROUTE · NOT INSIDE THE STATED PLANT-ANIMAL EXCLUSION · SOFTWARE-LABELLED CLAIM · APPLY CRITERIA AND EXCLUSIONS; NO BLANKET RULE HERE · CLASSIFY CLAIMED SUBJECT MATTER BEFORE POLICY ARGUMENT

**PLANTS / ANIMALS / SEEDS / VARIETIES → Section 3(j) exclusion**

PLANT VARIETY → PPV&FR sui-generis route → MICRO-ORGANISM → not inside the stated plant-animal exclusion → SOFTWARE-LABELLED CLAIM → apply criteria and exclusions; no blanket rule here

### CONCEPT / ARCHITECTURE

- PLANTS / ANIMALS / SEEDS / VARIETIES → Section 3(j) exclusion
- PLANT VARIETY → PPV&FR sui-generis route

### MECHANISM / APPLICATION

- MICRO-ORGANISM → not inside the stated plant-animal exclusion
- SOFTWARE-LABELLED CLAIM → apply criteria and exclusions; no blanket rule here

### READINESS / STATUS LIMIT

- RULE → classify claimed subject matter before policy argument
- CLOSE DISTINCTION: Discovery is not invention, filing is not grant, patent is not...

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → classify claimed subject matter before policy argument.**

11

STAGE 11

## INNOVATION ACCESS AND STATUS SPINE

INNOVATION ACCESS AND STATUS SPINE · DISCLOSURE + INVESTMENT + LICENSING · VALIDATION + TTO + PILOT + FINANCE + REGULATION · SECTION 3(D) + CL + OPPOSITION + BOLAR + · QUALITY RIGHTS, CREDIBLE SAFEGUARDS AND TRANSLATION CAPACITY · EVIDENCE LIMIT · CITE THE RELEVANT ACT/PROVISION

INCENTIVE → disclosure + investment + licensing → TRANSLATION → validation + TTO + pilot + finance + regulation + market → ACCESS → Section 3(d) + CL + opposition + Bolar + TRIPS flexibilities → STATUS → filed != published != examined != granted != commercialised → VERDICT → quality rights, credible safeguards and translation capacity

### CONCEPT / ARCHITECTURE

- INCENTIVE → disclosure + investment + licensing
- TRANSLATION → validation + TTO + pilot + finance + regulation + market

### MECHANISM / APPLICATION

- ACCESS → Section 3(d) + CL + opposition + Bolar + TRIPS flexibilities
- STATUS → filed != published != examined != granted != commercialised

### READINESS / STATUS LIMIT

- VERDICT → quality rights, credible safeguards and translation capacity
- EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: Cite the relevant Act/provision,...

**MECHANISM / VERDICT —** EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: Cite the relevant Act/provision,...

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → quality rights, credible safeguards and translation capacity.**

E

EXTRA

## SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · STRONG IPR DOES NOT MEAN IDENTICAL TREATMENT ACROSS ALL · INDIA'S PATENT SYSTEM REFLECTS A BALANCING DESIGN · IT SEEKS · INNOVATION INCENTIVES WITHOUT MECHANICALLY ACCEPTING EVERGREENING OR UNAFFORDABLE EXCLUSION. · GI PROTECTION IS ALSO A DEVELOPMENT AND RURAL-ECONOMY TOOL · ADMINISTRATIVE APEX WITHIN INDIA'S IP-OFFICE STRUCTURE. · PATENT OFFICE, TRADE MARKS REGISTRY AND GI REGISTRY

### OPTIONAL SCIENTIFIC / ENGINEERING DEPTH

- CAUTION: Strong IPR does not mean identical treatment across all IP types; patents, trademarks and GIs solve different economic problems.
- CAUTION: India's patent system reflects a balancing design; it seeks
- innovation incentives without mechanically accepting evergreening or unaffordable exclusion.
- CAUTION: GI protection is also a development and rural-economy tool, not merely a legal badge.

### READINESS, UNIT OR STATUS LIMIT

- CGPDTM: administrative apex within India's IP-office structure.
- Patent Office, Trade Marks Registry and GI Registry: specialized operational arms.
- DPIIT / CIPAM: policy coordination under the National IPR Policy 2016.
- WIPO: treaty and international-cooperation layer for PCT and broader IP governance.

### COMPARATIVE TECHNOLOGY / GOVERNANCE NUANCE

- WTO/TRIPS: multilateral trade-law layer shaping minimum standards and flexibilities.
- Patents matter for deep technology, pharmaceuticals, manufacturing, biotech and electronics.
- Trademarks support market identity, goodwill and commercialization.
- GIs help region-linked producers capture reputation value in domestic and export markets.

**OPTIONAL STATUS —** This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels